



CHAPTER ii.]

An Act to confirm a Provisional Order under the Burgh Police (Scotland) Act 1892 relating to Paisley. A.D. 1901.

[2nd July 1901.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Burgh Police (Scotland) Act 1892 and it is requisite that the said Order should be confirmed by Parliament: 55 & 56 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Paisley Gas Order Confirmation Act 1901. Short title.

A.D. 1901.

S C H E D U L E.

PAISLEY GAS.

BURGH POLICE (SCOTLAND) ACT 1892.

(55 & 56 Victoria Cap. 55.)

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes of that Act and specially powers relating to the supply of gas or water or to the roads and streets or to drainage or sewers or the utilisation of sewage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Acts of Parliament relating to such subjects or their adaptation and adjustment to the provisions of the Act now in recital or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and (section 46) that after such inquiry as the Secretary for Scotland may direct it shall be lawful for him to issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but no Provisional Order shall be of any validity unless the same has been confirmed by Act of Parliament:

And whereas the Burgh Police (Scotland) Act 1892 is in force within the Burgh of Paisley and the magistrates and town council thereof (herein-after called "the magistrates and town council") are the Commissioners under the said Act within the burgh:

And whereas by the Paisley Corporation Gas Act 1870 (herein-after called "the Act of 1870") the property powers rights and privileges of the Board of Commissioners in whom the gas supply of the said Burgh of Paisley was then vested were transferred to and vested in the magistrates and town council and the magistrates and town council were authorised to maintain improve extend and renew the gasworks thereby transferred to and vested in them and to supply gas to the said burgh and the suburbs thereof and places adjacent and were empowered to borrow for the purpose of carrying the Act of 1870 into execution any sum not exceeding the sum of fifteen thousand pounds on the security of the rents charges and revenues accruing to them from the lands property and works transferred to and vested in them by the Act of 1870 and thereafter to be acquired or constructed by them for the purposes of that Act and from the sale of gas and residual products:

[1 EDW. 7.] *Paisley Gas Order Confirmation Act, 1901.* [Ch. ii.]

And whereas the borrowing powers of the magistrates and town council under the Act of 1870 have from time to time been increased as follows that is to say by the General Police and Improvement (Scotland) Act 1862 Order Confirmation (Paisley) Act 1879 (herein-after called "the Order of 1879") to the sum of forty-five thousand pounds by the Paisley Corporation Gas Order Confirmation Act 1899 (herein-after called "the Order of 1899") to the sum of seventy thousand pounds and by the Paisley Gas Order 1900 (herein-after called "the Order of 1900") to the sum of one hundred and fifty thousand pounds:

A.D. 1901.
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And whereas by the Paisley Electric Lighting Order 1891 (herein-after called "the Order of 1891") the magistrates and town council were authorised to supply electrical energy within the burgh of Paisley for all public and private purposes as defined by the Electric Lighting Act 1882:

And whereas by virtue of section 8 of the Electric Lighting Act 1882 as amended by the Electric Lighting (Scotland) Act 1890 the magistrates and town council are empowered with the consent of the Secretary for Scotland to borrow money for the purposes of the Order of 1891 upon the security of the gas rates leviable and gas rents and other revenues receivable under the Act of 1870 subject to such provisions and restrictions with respect to borrowing and the repayment of loans as are contained in the Act of 1870 as amended by the Orders of 1879 1899 and 1900:

And whereas the magistrates and town council have borrowed and expended for the purposes of the Act of 1870 and of the Order of 1891 the full amount which they are by the Act of 1870 as amended by the Orders of 1879 1899 and 1900 authorised to borrow:

And whereas it is expedient that the borrowing powers of the magistrates and town council under the Act of 1870 should be further increased so as to enable them to apply to the Secretary for Scotland for his consent under the Electric Lighting Acts to additional borrowing for the purposes of the Order of 1891:

And whereas the magistrates and town council have presented a petition to me as Secretary for Scotland setting forth the matters herein-before recited:

And whereas after due inquiry I have resolved to issue a Provisional Order in the terms herein-after expressed:

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows:—

1.—(1.) From and after the passing of the Act confirming this Order and subject as herein-after provided section 64 of the Act of 1870 as amended by the Order of 1879 the Order of 1899 and the Order of 1900 shall be read as if the words one hundred and seventy-five thousand pounds had been inserted therein instead of the amended words one hundred and fifty thousand pounds Provided that in construing section 71 of the Act of 1870 all moneys expended in payment of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order shall be

Power to
borrow.

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A.D. 1901. held to be moneys applied in carrying the Act of 1845 (as defined by the Act of 1870) and the Act of 1870 into execution.

(2.) All money borrowed under the authority of this Order shall be applied only for purposes to which capital is properly applicable.

(3.) Nothing in this Order shall authorise the magistrates and town council to borrow under the authority of the Act of 1870 as amended by the Orders of 1879 1899 and 1900 and this Order except with the consent of the Secretary for Scotland any sum in excess of that which they are authorised to borrow by the Act of 1870 as amended by the Orders of 1879 and 1899.

Priority of
existing
mortgages.

2. All mortgages granted by the magistrates and town council for securing money borrowed or deemed to have been borrowed under the authority of the Act of 1870 as amended by the Order of 1879 the Order of 1899 and the Order of 1900 and subsisting at the passing of the Act confirming this Order shall without prejudice to their priorities inter se and during the continuance of such mortgages have priority over all mortgages granted by the magistrates and town council for securing money borrowed under the authority of this Order.

Repayment
of borrowed
money.

3. The magistrates and town council shall pay off all money borrowed by them under the authority of this Order within forty years from the date or dates of borrowing the same respectively and the provisions of section 3 of the Order of 1899 shall apply to money borrowed under the authority of this Order as if it were money borrowed under the authority of the Order of 1899. Provided that the payments into sinking fund on account of any loan for paying the costs charges and expenses of this Order shall be sufficient to pay off such loan within five years from the date of borrowing the same.

Citation of
Order and
Acts.

4. This Order may be cited as the Paisley Gas Order 1901 and the Act of 1845 (as defined in the Act of 1870) the Act of 1870 and the Acts confirming the Orders of 1879 1899 1900 and this Order may be collectively cited as the Paisley Gas Acts 1845 to 1901.

Given under my hand and seal at Whitehall this tenth day of January
in the year one thousand nine hundred and one.

L.S.

BALFOUR OF BURLEIGH.

Printed by EYRE and SPOTTISWOODE,

FOR

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